

121	Gonzalez vs. Bear Down Brands, LLC 2023-01340515	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they fail to adequately address the previously identified issues and/or raise new issues that must be addressed. Accordingly, Plaintiff Nicolas Gonzalez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is further CONTINUED to September 25 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/7/2023, Plaintiff Nicolas Gonzalez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Bear Down Brands, LLC, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) Defendant answered on 11/8/2023. (ROA #13.) On 1/8/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class/PAGA Action Settlement Agreement and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$149,250. The GSA includes a credit of \$37,250 for money already paid by Defendant to individual <i>Pick Up Stix</i> Settled Class Members allegedly as a result of this action and \$12,500 allocated for PAGA penalties. On 5/14/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #70.) Counsel has submitted supplemental materials, including an Amended Class/PAGA Action Settlement Agreement (“Amended Settlement Agreement”) and an amended Class Notice. The Court has identified several issues with the supplemental papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. The Court’s previous 5/14/2026 minute order stated: “The moving papers do not provide sufficient information about Defendants’ <i>Pick Up Stix</i> settlement payments—including but not limited to the dates of the settlement payments, how many Class Members were paid, how much was paid to each, or what type of release Defendant obtained in exchange—so as to allow the Court to properly evaluate the fairness, adequacy, and reasonableness of the terms of the instant Settlement Agreement, including the \$250 payments to <i>Pick Up Stix</i> Unsettled Class Members in the first instance before pro rata allocation of the remaining Net Settlement Amount among all Class Members.
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	The moving papers also do not address whether the named Plaintiff received a <i>Pick Up Stix</i> settlement from Defendant.” (ROA #70.) Plaintiff’s Supplemental Brief addresses most of these questions, but still fails to address whether the named Plaintiff received a <i>Pick Up Stix</i> settlement from Defendant. (ROA #73.) 2. Plaintiff’s Supplement Brief explains that as part of Defendant’s <i>Pick Up Stix</i> settlement program, Defendant paid a total of \$26,250 to 88 Class Members. This raises the question why Defendant is receiving a credit of \$37,250—i.e., \$11,000 more—under the Amended Settlement for money already paid to individual <i>Pick Up Stix</i> Settled Class Members (see Am. Settlement, ¶¶ I.S, III.A). 3. Similarly, Plaintiff’s Supplement Brief explains that under Defendant’s <i>Pick Up Stix</i> settlement program, Defendant paid 61 Class Members \$500 each and 27 Class Members \$250 each, with the amount of the payment based on the number of weeks the Class Member was employed by Defendant. Counsel does not explain, however, the valuation analysis used to determine that \$250 is an appropriate equalization payment for the <i>Pick Up Stix</i> Unsettled Class Members under the Amended Settlement Agreement. For example, was this amount determined based on an analysis of the number of weeks actually worked by the <i>Pick Up Stix</i> Unsettled Class Members? Class Counsel must also provide the Court with a further revised Class Notice with the following revisions: 1. The Court’s previous 5/14/2026 minute order stated: “Section 7 of the notice may be interpreted as advising Class Members to wait to object until after Plaintiff has filed his final approval motions, which need not occur until 16 court days before the final approval hearing date and may therefore occur after Class Members’ deadline to send written objections. The notice should simply inform Class Members of the deadlines for Plaintiff’s filings in support of final approval as well as the final approval hearing date.” (ROA #70.) The parties’ edits do not adequately address this concern. Section 7 of the revised Class Notice still starts by stating, “Before deciding whether to object, you may wish to see what Plaintiff and Defendant are asking the Court to approve.” This sentence may still be interpreted as advising Class Members to wait to object until after Plaintiff has filed his final approval motions, which need not occur until 16 court days before the final approval hearing date and may therefore occur after Class Members’ deadline to send written objections. This sentence should be deleted. Class Counsel must also provide a further revised Proposed Order with the following corrections and revisions: 1. The ROA number is incorrectly listed for counsel’s supplemental declaration to which the Amended Settlement Agreement is attached. It should be #73, not #71.
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		2. The amount for the cost of administration is incorrectly listed as \$6,500 rather than \$6,550 as provided in the Amended Settlement Agreement at ¶ III.B.4. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) calendar days, and file proof of service. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
122	Regalado Contreras vs. Inmar Supply Chain Solutions, LLC 2024-01444626	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Mario Regalado Contreras’s Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 12/6/2024, Plaintiff Mario Regalado Contreras, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant. (ROA #2.) On 2/10/2025, Plaintiff filed a first amended complaint to add a cause of action for PAGA penalties. (ROA #17.) The operative complaint is the second amended complaint, filed on 11/4/2025 pursuant to the parties’ stipulation and the Court’s order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #73.) On 11/3/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Stipulation of Class and PAGA Settlement and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement